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 v. Sungundi
Digital Forensic Report

Prepared by:
George Ndirangu

Specialist field:
Digital Forensics

On behalf of:
Parker Randall -EA

Subject matter:
Draft Digital Forensics Report

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Digital Forensic Report

1 Introduction

The purpose of this report is to provide corroborative evidence of the motivation, opportunity and intent leading to the fraud perpetrated by █████ Sungundi. The facts presented within this report are those within the preparer's own area of expertise and knowledge and do not extend to matters and knowledge outside such expertise.

1.1 Summary of case and tasking

In the period between 2014, and 2017, █████ Sungundi was hired as the CFO for █████. During this time, he perpetrated a fraud that involved the transfer of payments intended for Payroll expense payments to his person for his own use at the disadvantage of the Organization.

As a result of this fraud, the institution suffered a financial loss of Kshs. XXXXXXXXXX and has become liable to the Kenya Revenue Authority for Payroll Taxes not paid and this coupled with the financial loss, may hinder the ability of the organization's operations.

The forensic expert was therefore engaged to reconstruct to the best of their ability, the documentary evidence showing the activities of █████ Sungundi as well as find corroborative evidence of professional negligence on the side of the External Auditor.

1.2 Statement of compliance

I understand my duty as an expert witness to provide independent assistance by way of objective unbiased opinion in relation to matters within my expertise. I will inform all parties in the event that my opinion changes on any material issues.

2 Forensic Examination

All examinations, measurements, tests and experiments related to the Digital image of the accused's computer were performed by the expert and we have summarised our findings on which the expert relies.

2.1 Tools

The forensic tools employed in the performance of this investigation were as follows:

- ∞ **Boot stage Disk imaging software** - OSF Clone Version 1.2.1

Forensic Software that allows non-intrusive data imaging, where files are copied from the hard drive whilst preventing write access to the hard drive in order to preserve evidential integrity. The files are then compressed into what we call an image of the drive (Designated with extension ".dd").

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∞ **Artefact extraction and Analysis-** Sleuth Kit 4.6.5

Open Source Digital Forensics Software which provides investigators with the tools to conduct complex investigations with accuracy and efficiency. It allows completely non-invasive computer forensic investigations while allowing examiners to easily manage large volumes of computer evidence and view computer drive contents including files, operating system artefacts, file system artefacts, and deleted files or file fragments located in file slack or unallocated space.

∞ **File Password Decryption-** Passware Password Recovery Kit Forensic Version 2017.1.1

Forensics Software developed by Passware Inc., is a complete evidence discovery solution, providing immediate password recovery for any protected file detected on a PC while scanning. This solution includes the capability to perform instant decryption of hard disk images from the seized computers.

To the experts knowledge, there is no software in use above that possesses any material issues whose severity would invalidate the findings thereof.

2.1 Chain of Custody

<u>LENOVO PC</u>		
Consultant: (Name/ID#) <u>George Ndirangu ID NO 25005038</u>		
Client: <u>[REDACTED], Kabarsiran Gardens Road- Lavington- Mob [REDACTED]</u>		
Auditee: <u>Lenovo PC Thinkcentre used by [REDACTED] Sungudi</u>		
Date/Time of Custody: <u>11:05 am 21 Feb 2019</u>		
Location of Seizure: <u>[REDACTED], Kabarsiran Gardens Road- Lavington</u>		
Description of Evidence		
Item #	Quantity	Description of Item (Model, Serial #, Condition, Marks, Scratches)
1	1	Lenovo ThinkCentre Pc- HDD Model ATA ST500DM002-1BD14
		Serial No: W3T9K3YD
		Size 500gb
Chain of Custody		
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Item #	Date/Time	Released by (Signature & ID#)	Received by (Signature & ID#)	Comments/Location
1	11:00 am 21/2/19	Alexei Dunaway	George Ndirangu	Pc had been accessed prior to imaging to perform the following activities: ∞ Printing ∞ Email access ∞ Retrieval of Payroll soft copies Impact on integrity of data will be assessed through metadata tag analysis Impact of integrity on deleted artifacts to be assessed during recovery process Location: Pc was not moved. Pc was turned off at the time of arrival. Imaging of the PC was done through a live disk of OSFClone forensic imaging software. Further Alterations to the system were therefore avoided by preventing bootup
1	12:25 pm 21/2/19	Alexei Dunaway	George Ndirangu	Image: img_██████████PC1107AMFEB212019.dd Image obtained is of 500,107,862,016 bytes 0 bad sectors found MD5 Hash of Image D65c0d5f328f9bea0ff1b450ce8f2204 Time of Image completion

Our responsibility is to express an opinion on these financial statements based on our audit. We conducted our audit in accordance with International Standards on Auditing. Those standards require that we comply with ethical requirements and plan and perform the audit to obtain reasonable assurance whether the financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the financial statements. The procedures selected depend on our judgement, including the assessment of the risks of material misstatement of the financial statements, whether due to fraud or error. In making those risk assessments, we considered the internal controls relevant to the organisation's preparation and fair presentation of the financial statements in order to design audit procedures that were appropriate in the circumstances, but not for the purpose of expressing an opinion on the organisation's internal controls. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of accounting estimates made by the directors, as well as evaluating the overall presentation of the financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

4.1.1.1.3 Opinion

In our opinion the accompanying financial statements give a true and fair view of the financial position of [REDACTED] as at 30 June 2016 and of its financial performance and its cash flows for the year then ended in accordance with the accounting policies set out in note 1 to the financial statements.

This report is intended solely for the information of [REDACTED], and its partners and should not be distributed to or used by other parties. However, upon release by [REDACTED] and its partners this report is a matter of public record and its distribution is not limited.

[REDACTED]

Certified Public Accountants (Kenya)

2017

Nairobi

Table 4: Engagement Letter from Samuel [REDACTED] with a different Audit Firm: Geoffrey Gitau & Co

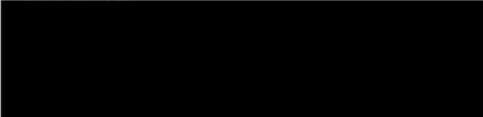
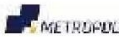
	Geoffrey Gitau & Co Ground Floor 1st Floor, Box 60559-00200, Nairobi-Kenya Phone: 011 254 77 755 88 21 Email: ggitau@geoffreygitau.co.ke
11th February, 2014	
The Director 	
Dear Sir,	
<u>RE: ENGAGEMENT LETTER FOR AUDIT SERVICES AS FROM 1ST JANUARY, 2013</u>	
1. You have appointed us to audit the books and records of accounts, to prepare balance sheet and the related statements of income and cash flows as of 31st December, 2013. We are pleased to confirm our acceptance and our understanding of this engagement by means of this letter. Our audit will be made with the objective of our expressing an opinion on the financial statements.	
2. We will conduct our audit in accordance with International Standards on Auditing. Those Standards require that we plan and perform the audit to obtain reasonable assurance about whether the financial statements are free of material misstatements. An audit includes examining, on a test basis, evidence supporting the amounts and disclosures in the financial statements. An audit also includes assessing the accounting principles used and significant estimates made by management, as well as evaluating the overall financial statement presentation.	
3. Because of the test nature and other inherent limitations of an audit, together with the inherent limitations of any accounting and internal control system, there is an unavoidable risk that even some material misstatements may remain undiscovered. In addition to our report on the financial statements, we expect to provide you with a separate letter concerning any material weaknesses in accounting and internal control systems which come to our notice.	
4. We remind you that the responsibility for the preparation of financial statements including adequate disclosure is that of the management of [REDACTED] Development [REDACTED]. This includes the maintenance of adequate accounting records and internal controls, the selection and application of accounting policies, and the safeguarding of the assets of the organization. As part of our audit process, we will request from management written confirmation concerning representations made to us in connection with the audit.	

Table 5: Credit Report for ██████████ Sungudi showing his net liability position and possible motive for the fraud



Shelter Afrique Centre, Longonet Road, Upper Hill
P.O. Box 33333 - 00200, Nairobi, Kenya
Email: creditbureau@metropol.co.ke
Mobile: +254727413733, +254732774666
Landline: +254700834000, +2547333469691
www.metropol.co.ke

Customer Credit Report

1035-FBFPBYIZEIBDDHM

Identity [11579123]

Requested By Evans Sungudi	Requesting Organization Metropol Credit Reference Bureau	Report Date 2017-03-25	Reference Number #REF 1035-FBFPBYIZEIBDDHM
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Metro-Score

721

PPI

M1

Identity Document	Date of Birth	Gender	Nationality	Marital Status
 National ID: 11470133	 13/01/1977	 Male	 Kenyan	MARRIED
Phone Number(s) 254072221002	Website	Email Address esungudi@yahoo.com		

Address

Postal Address PO BOX 4778	Postal Code 100	Town NAIROBI	Country KENYA
Physical Address PO BOX 4778	Plot Number RUBITA SATELITE - 10	Town NAIROBI	Country KENYA
Postal Address PO BOX 4778	Postal Code 100	Town NAIROBI	Country KENYA
Physical Address KENYA	Plot Number	Town KENYA	Country KENYA

Key

-  Latest Record
-  Previous / Other Record
-  Verified Detail

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Table 6: Decrypted Extract of [REDACTED] Sungudi M-Pesa statement showing unusual level of Deposits for 12 months

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M-PESA STATEMENT		
Customer Name:	[REDACTED]	
Mobile Number:	[REDACTED]	
Email Address:	[REDACTED]	
Date of Statement:	18 Dec 2017	
Statement Period:	18 Dec 2016 - 18 Dec 2017	
SUMMARY		
TRANSACTION TYPE	PAID IN	PAID OUT
SEND MONEY:	0.00	8,557,494.00
RECEIVED MONEY:	872,737.00	0.00
AGENT DEPOSIT	3,536,000.00	0.00
AGENT WITHDRAWAL	0.00	148,391.00
UPANA M-PESA (PAYROLL)	0.00	200,491.00
UPANA M-PESA (BUY GOODS)	0.00	180,366.00
OTHERS:	217,590.00	166,340.00
TOTAL	4,826,517.00	4,844,079.55